

**CHAPTER iii.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Scrabster Harbour. A.D. 1924.

[18th December 1924.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict. c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Scrabster Harbour Order Confirmation Act 1924. Short title.

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SCHEDULE.

SCRABSTER HARBOUR.

Provisional Order to make provision with regard to the statutory rates leviable at the harbour of Scrabster in the county of Caithness.

WHEREAS by an Act passed in the fourth and fifth years of the reign of Her late Majesty Queen Victoria (chapter 50) intituled "An Act for making and maintaining a Harbour at Scrabster Roads in the Bay of Thurso and County of Caithness and Road thereto" (hereinafter in this Order referred to as "the Act of 1841") certain persons therein named and their successors in office were together with such persons as should contribute or lend one hundred pounds or more to the undertaking incorporated by the style and name of "the Trustees of the Harbour of Scrabster" (hereinafter in this Order referred to as "the Trustees") for the purpose of forming and maintaining a harbour at or near Holburnhead or Scrabster Roads in the Bay of Thurso in the county of Caithness with proper works and conveniences connected therewith (hereinafter referred to as "the harbour") and were authorised to demand and take in respect of the use of the harbour the rates and duties specified in the said Act :

And whereas by the Scrabster Harbour Order 1897 confirmed by the Pier and Harbour Orders Confirmation (No. 5) Act 1897 (hereinafter in this Order referred to as "the Order of 1897") the Trustees were authorised in substitution for the rates and duties specified in the Act of 1841 to demand recover and receive the rates referred to in section 22 of and specified in the schedules to the Order of 1897 :

And whereas the rates which the Trustees may demand recover and receive in respect of the harbour have from time to time been increased by orders made by the Ministry of Transport under the Harbours Docks and Piers (Temporary Increase of Charges) Acts 1920 to 1922 :

And whereas in order to enable the Trustees permanently to levy and make adequate rates in respect of the harbour it is expedient that the maximum rates authorised by the Order of 1897 should be varied as provided by this Order : A.D. 1924.

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the *Scrabster Harbour Order 1924* and the Act of 1841 the *Scrabster Harbour Orders 1897 and 1903* and this Order may be cited together as the *Scrabster Harbour Acts 1841 to 1924*. Short and collective titles.

2. This Order shall commence and take effect on and from the sixteenth day of February one thousand nine hundred and twenty-five which date is hereinafter referred to as “the commencement of this Order.” Commencement of Order.

3. On and from the commencement of this Order section 22 (Power to levy rates) of the Order of 1897 and the schedules referred to in that section shall be read and take effect as if the maximum rates which the Trustees are by or in pursuance of the said section and schedules authorised to demand recover and receive were in each case increased by an amount equal to fifty per centum thereof except that :— Increase of rates.

(a) In respect of each vessel or boat using the harbour engaged in the herring fishery at Scrabster in any fishing season thereat (the period embraced in such season to be of not less than three months duration and to be defined by the Trustees in each year) as a composition in full of rates for the period of such fishing season payable in advance the Trustees may demand recover and receive rates not exceeding those specified in Part I. of the schedule to this Order ;

(b) In respect of the goods and fish shipped trans-shipped or unshipped in the harbour specified

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in Part II. of the said schedule the Trustees may demand recover and receive rates not exceeding those specified in that Part of the said schedule; and

- (c) In respect of water supplied to the vessels mentioned in Part III. of the said schedule the Trustees may demand recover and receive rates not exceeding those specified in that Part of the said schedule.

Revision of
rates.

4.—(1) If at any time it is represented in writing to the Minister of Transport (hereinafter in this section referred to as “the Minister”)—

- (a) by any chamber of commerce or shipping or any representative body of traders or any person who is in the opinion of the Minister a proper person for the purpose; or
(b) by the Trustees

that under the circumstances then existing all or any of the maximum rates authorised by this Order should be revised the Minister may if he thinks fit after inquiry in pursuance of any such representation make an order revising all or any of such rates as aforesaid and may fix the date as from which such order shall take effect and thenceforth such order shall be observed until the same expires or is revoked or modified by a further order of the Minister made in pursuance of this section. Provided that the revised maximum rates as authorised by any such order shall not be less than the corresponding maximum rates authorised by section 22 of the Order of 1897 and the schedules referred to in that section or be more than the maximum rates authorised by this Order.

(2) No application may be made under this section for a general revision of the rates for the time being authorised under this Order within twelve months after the date of an order made by the Minister for a general revision thereof and no application may be made for a revision of any particular rate within twelve months after the date of an order made by the Minister for a general revision of the said rates or of any previous application for a revision of the particular rate in question.

(3) The provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply for the purposes

of this section as if the Minister were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

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(4) An application made to the Minister under this section shall be accompanied by such information and particulars certified in such manner as the Minister may require and the Minister and any person duly authorised pursuant to section 2 of the Board of Trade Arbitrations &c. Act 1874 as applied by this section to hold an inquiry for the purposes of this section may call for such documents and accounts as he shall think fit and such person may hear such witnesses as he shall think fit and shall have power to take evidence on oath and for that purpose any such person may administer oaths.

(5) Section 28 (Rates to be revised) of the Order of 1897 so far as that section empowers the Board of Trade to reduce the rates leviable under that Order is hereby repealed.

5. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Trustees.

Costs of
Order.

SCHEDULE referred to in the foregoing Order.

PART I.

Rates for each vessel or boat using the harbour engaged in the herring fishery at Scrabster in any season thereat (the period to be embraced in such season to be of not less than three months duration and to be defined by the Trustees in each year) as a composition in full of rates for the period of such fishing season payable in advance :—

	s.	d.
Under five tons - - - - -	10	0
Five tons and under twenty tons - - - - -	20	0
Twenty tons and upwards - - - - -	30	0

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PART II.

Rates on the undermentioned goods shipped transhipped or unshipped in the harbour :—

		s.	d.
Bran	- - - - - per ton	2	0
Cattle food and feeding stuffs (not otherwise specified in the Order of 1897)	- - - - - per ton	2	0
Cows and oxen	- - - - - each	1	0
Motor cycles	- - - - - each	2	6
Motor cycles with side-cars	- - - - - each	3	6
Motor cars	- - - - - each	5	0
Motor lorries	- - - - - each	2	6
Motor spirit	- - - - - per ton	2	6
Oil used as fuel for vessels	- - per 100 gallons	1	0
Petrol	- - - - - per ton	2	6
Pigs	- - - - - each	0	4
Sugar	- - - - - per ton	2	0

Rates on the undermentioned fish shipped transhipped or unshipped in the harbour :—

		s.	d.
Herrings (when value known)	- per £1 value	0	4
Herrings (when value not known)	- per cran	0	6
Salmon	- - - - - per ton	10	0

PART III.

Rates for water :—

Fishing boats supplied :	s.	d.
For each fishing season for both boiler and domestic water a compounding rate of - - -	10	0
Fishing boats - - per 25 gallons supplied	0	2
But not less for any quantity than - - -	1	0

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